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April 8, 2025

ENGROSSED HOUSE  
BILL NO. 1991

By: Turner of the House

and

Howard of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 461, which relates to bail taken in another county; authorizing defendants to post bond in another jurisdiction under certain circumstances; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 461, is amended to read as follows:

Section 461. A. If the defendant is brought before a magistrate of another county for the purpose of giving bail, the magistrate must proceed in respect thereto, in the same manner as if the defendant had been brought before ~~him~~ the magistrate upon a warrant of arrest, and the same proceedings may be had thereon.

B. If a defendant is confined in a county jail, municipal jail, or a jail operated by a regional jail authority, and the defendant has a request to hold in custody from another jurisdiction within the state, the defendant may post a bond in the other jurisdiction to release the hold. Upon proof that a bond has been posted, the

1 request to hold in custody from the other jurisdiction shall be  
2 released.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY  
5 April 8, 2025 - DO PASS  
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